

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

ANASTASIOS KOUTSOPETRAS,

Plaintiff,

-against-

Index No.

Date Filed

Plaintiff Designates:

Kings County for Trial

Basis of Venue:

Plaintiff's residence

SUMMONSTHE CITY OF NEW YORK, POLICE OFFICER
STACEY KISHPAUGH SHIELD NO 25405, JOHN DOE
FICTICIOUS NAME INTENDED TO BE THE POLICE
OFFICERS AND ITS TRUE NAME NOT YET KNOWN,
and NEW YORK CITY POLICE DEPARTMENT

Defendants.

Plaintiff's Residence

7401 Shore Road, Apt 5b

Brooklyn, New York 11209

County of: Kings

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
July 28, 2020PATRICK HAYES, ESQ
Hayes Law Practice PLLC
Attorneys for Plaintiff
4616 FIFTH AVENUE
BROOKLYN, NEW YORK 11220
(718) 567-8111

Defendants' Address:

POLICE OFFICER
STACEY KISHPAUGH
NYC Police Precinct 68
333 65 Street
Brooklyn, New York 11209NEW YORK CITY POLICE DEPARTMENT
1 Centre Street
New York, New York

City of New York
Office of Comptroller,
100 Church Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANASTASIOS KOUTSOPETRAS,

Plaintiff,

-against-

Index
Date Filed:

VERIFIED COMPLAINT

THE CITY OF NEW YORK and POLICE OFFICER
STACEY KISHPAUGH SHIELD NO 25405, JOHN DOE
FICTICIOUS NAME INTENDED TO BE THE POLICE
OFFICERS AND ITS TRUE NAME NOT YET KNOWN,
and NEW YORK CITY POLICE DEPARTMENT,

Defendants.
-----X

To the above named Defendant(s):

Plaintiff, ANASTASIOS KOUTSOPETRAS and, by and through his attorney,
Patrick Hayes, Esq. of HAYES LAW PRACTICE, PLLC as and for a Verified Complaint
herein, respectfully set forth and allege the following:

1. Plaintiff ANASTASIOS KOUTSOPETRAS (Herein referred as KOUTSOPETRAS) was and is a resident of County of Kings, State of New York.
2. Defendant Stacy Kishpaugh (Herein referred as KISHPAUGH) was at all times relevant duly appointed and acting police officer of the New York City Police Department within the scope of her employment.
3. Defendant KISHPAUGH was at all times relevant assigned to the 68Th Police Precinct in Brooklyn, New York
4. Defendant THE CITY OF NEW YORK was and is a municipal corporation, duly authorized and existing by virtue of the laws of the State of New York.

5. Defendant THE NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly authorized and existing by virtue of the laws of the State of New York.

6. Defendant JOHN DOE is a fictitious name intended to be the police officers whose true name or names are not yet known.

7. On or about September 25, 2018, the Defendant THE CITY OF NEW YORK owned, controlled, maintained, supervised, and operated the Defendant THE NEW YORK CITY POLICE DEPARTMENT.

8. On or about August 19, 2019, the defendants were served with a Notice of Claim in full compliance with General Municipal Law Section 50-e.

9. Prior to the commencement of this action, at least 90 days have elapsed from the date of service of said Notice of Claim and adjustment or payment has been neglected or refused.

10. Less than one year and ninety days has elapsed since the happening of the event on which this action is based and the commencement of this action.

11. On or about September 25, 2018 plaintiff resided at 7401 Shore Road, Apt 5b, Brooklyn, New York.

12. That prior to September 25, 2018 defendant KISHPAUGH and John Doe met on more than one occasion with a woman named Maria Athanasia Koutsopetras, separated wife of plaintiff KOUTSOPETRAS, in an effort to devise a plan to have plaintiff meet Maria Athanasia Koutsopetras to serve responsive divorce papers from Kings County, Supreme Court.

13. The said responsive divorce papers listed Maria Athanasia Koutsopetras as a resident of the County of Los Angeles State of California and not of 7401 Shore

Road, apt 5b, Brooklyn, New York.

14. That prior to September 25, 2018 Maria Athanasia Koutsopetras was and is a resident of the County of Los Angeles State of California.

15. That on September 25, 2018 defendant KISHPAUGH with Maria Athanasia Koutsopetras sent text messages to have plaintiff meet on 65th Street and 7th Avenue, in Brooklyn, New York.

16. That on September 25, 2018, defendant KISHPAUGH and defendant JOHN DOE forcibly handcuffed and arrested plaintiff.

17. That on September 25, 2018 plaintiff was forcibly handcuffed and arrested based on allegations that were made on September 25, 2018, that occurred 1 year earlier.

18. That on September 25, 2018, defendant KISHPAUGH and JOHN DOE knowingly and intentionally delayed, plaintiff's arraignment to September 27, 2018 in an effort to obtain a search warrant to plaintiff's residence.

19. That on September 25, 2018 defendant KISHPAUGH and defendant JOHN DOE mislead, misrepresented, and hid from the court information that would have denied them from obtaining a search warrant.

20. That on September 25, 2018, defendant KISHPAUGH knew and was aware that Maria Athanasia Koutsopetras was a resident of Los Angeles, California.

21. That on September 25, 2018, defendant KISHPAUGH informed plaintiff that defendant KISHPAUGH and JOHN DOE reviewed the divorce papers and stated she did not agree with the plaintiff's complaint and later served plaintiff with Maria Athanasia Koutsopetras responsive papers.

22. That on September 25, 2018, defendant KISHPAUGH and defendant JOHN

DOE were aware that Maria Athanasia Koutsopetras did not have keys to plaintiff's premise since she was a resident of Los Angeles, State of California.

23. That on September 25, 2018, defendant KISHPAUGH and defendant JOHN DOE took plaintiff's keys without permission or authority and without a warrant to gain entry to plaintiff's apartment without his permission or authority.

24. That on September 25, 2018 defendant KISHPAUGH and JOHN DOE with Maria Athanasia Koutsopetras, without plaintiff's permission and authority, entered plaintiff's premise.

25. That on September 25, 2018 defendant KISHPAUGH and JOHN DOE with Maria Athanasia Koutsopetras, without the permission and authority entered plaintiff's premise using plaintiff's keys.

26. That on September 25, 2018 defendant KISHPAUGH, and defendant John Doe with Maria Athanasia Koutsopetras, without the permission and authority entered plaintiff's premise and searched the apartment.

27. That on September 25, 2018 defendant KISHPAUGH, John and Jane Does with Maria Athanasia Koutsopetras, due to their unlawful conduct in their search of plaintiff's premise caused plaintiff to sustain damages to his premise as well as personal property, including a safe that was pried open with a crow bar that was left behind in plaintiff's apartment.

28. That on September 25, 2018, defendant KISHPAUGH, John and Jane Doe with Maria Athanasia Koutsopetras took several items which have not been returned.

29. As a result of the illegal search by defendants plaintiff's property such as (2) Rolex watches, United States Naval Officers White Uniform, United States Naval Officers Blue Uniform, United States Naval Officers Identification, Federal and N.Y. State Tax

documentation and various antique knives, which defendants had no permission or authority to take have not been returned.

30. That on September 25, 2018 the value of the said Rolex watches are approximately \$35,000.00

31. That on September 25, 2018 through September 27, 2018, defendant KISHPAUGH and John and Jane Doe ridiculed and verbally abused plaintiff while held in custody.

32. That on September 25, 2018 through September 27, 2018 plaintiff on several occasions had requested the use of a telephone to call for an attorney but defendant KISHPAUGH and John and Jane Doe denied and ridiculed plaintiff for seeking legal representation.

33. That on September 25, 2018 KISHPAUGH, John and Jane Doe seized plaintiff's Mercedes Benz E350 vehicle New York License Plate HDV2127, without vouchering the said vehicle or providing plaintiff with a voucher.

34. That on September 25, 2018 Plaintiff was the titled owner of the Mercedes Benz E350 vehicle New York License Plate HDV2127.

35. Defendant KISHPAUGH, John and Jane Doe seized plaintiff's vehicle a Mercedes Benz E350 New York License Plate HDV2127, without vouchering the said vehicle or providing plaintiff with a voucher.

36. Prior to November 19, 2018 plaintiff visited defendant KISHPAUGH with a Certificate of Title from the New York State Department of Motor Vehicle for the said Mercedes Benz vehicle to show that plaintiff was the owner of the said vehicle and requested that the vehicle be released.

37. Prior to November 19, 2018 defendant KISHPAUGH refused to acknowledge

and or ignored plaintiff's Certificate of Title from the New York State Department of Motor Vehicle and refused to release the said Mercedes Benz vehicle.

38. On or about November 19, 2018 defendants released the said vehicle, worth approximately \$15,000.00 to Maria Athanasia Koutsopetras, without the permission or authority of plaintiff or any colorable right to do so.

39. On or about November 19, 2018 defendant KISHPAUGH and JOHNDOE placed plaintiff in handcuffs and incarcerated at the 68th precinct by defendant KISHPAUGH and JOHN DOE based on allegations that were made by Maria Athanasia Koutsopetras with the assistance of defendant KISHPAUGH and JOHN DOE on or about November 19, 2018, on an alleged incident 4 years earlier.

40. On or about November 19, 2018 defendant KISHPAUGH and JOHNDOE delayed plaintiff's arraignment to November 21, 2018.

41. On June 6, 2019 all charges were dismissed against plaintiff.

FIRST CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE FORCE UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION

42. Plaintiff repeats each and every allegations of paragraphs 1-41 above as though fully stated herein.

43. By the actions described above, the individual defendants, and each of them, deprived plaintiff Koutsopetras of rights secured by the United States Constitution, including, but not limited to plaintiff Koutsopetras right to be free from excessive and unreasonable force.

44. The use of force on plaintiff was unnecessary and excessive, not reasonably justified by the circumstances and employed for no proper purpose.

45. As a consequence, thereof, plaintiff has been injured.

SECOND CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE FORCE UNDER ARTICLE ONE, SECTION TWELVE OF
THE NEW YORK STATE CONSTITUTION

46. Plaintiff repeats each and every allegations of paragraphs 1-44 above as though fully stated herein.

47. By the actions described above, the individual defendants, and each of them, deprived plaintiff Koutsopetras of rights secured by the Constitution of the State of New York, including, but not limited to plaintiff Koutsopetras right to be free from excessive and unreasonable force.

48. The use of force on plaintiff Koutsopetras was unnecessary and excessive, not reasonably justified by the circumstances and employed for no proper purpose.

49. As a consequence, thereof, plaintiff has been injured.

THIRD CAUSE OF ACTION FOR ASSAULT

50. Plaintiff repeats each and every allegations of paragraphs 1-49 above as though fully stated herein.

51. By reason of the foregoing, the individual defendants, and each of them, intentionally placed plaintiff KOUTSOPETRAS in apprehension of imminent harmful and offensive contact, thereby committing an assault upon plaintiff.

52. As a consequence thereof, plaintiff KOUTSOPETRAS has been injured.

FOURTH CAUSE OF ACTION FOR BATTERY

53. Plaintiff repeats each and every allegations of paragraphs 1-52 as though fully stated herein.

54. By reason of the foregoing, the individual defendants, and each of them, grabbed, pushed and struck plaintiff KOUTSOPETRAS intentionally and in a harmful and offensive manner, thereby committing a battery upon plaintiff KOUTSOPETRAS.

55. As a consequence, thereof, plaintiff KOUTSOPETRAS has been injured.

FIFTH CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND SEIZURES UNDER THE FOURTH AND
FORTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

56. Plaintiff repeats each and every allegations of paragraphs 1-53 as though fully stated herein.

57. By the actions described above, the individual defendants, and each of them, deprived, plaintiff KOUTSOPETRAS of rights secured by the United States Constitution, including, but not limited to plaintiff Koutsopetras rights to be free and secure in his person and to be free from arrest or search, except on probable cause or pursuant to warrant.

58. . As a consequence thereof, plaintiff KOUTSOPETRAS has been injured.

SIXTH CAUSE OF ACTION FOR VIOLATING PLAINTIFF'S RIGHT
TO BE FREE FROM UNREASONABLE SEARCHES AND SEIZURES
UNDER ARTICLE ONE, SECTION TWELVE OF THE NEW YORK STATE
CONSTITUTION

59. Plaintiff repeats each and every allegations of paragraphs 1-58 as though fully stated herein.

60. By the actions described above, the individual defendants, and each of them, deprived plaintiff KOUTSOPETRAS of his rights secured by the Constitution of the State of New York, including, but not limited to plaintiff KOUTSOPETRAS right to be free and secure in his person and his rights to be free from arrest or search, except on probable cause or pursuant to warrant.

61. As a consequence thereof, plaintiff has been injured.

SEVENTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

62. Plaintiff repeats each and every allegations of paragraphs 1-61 as though fully stated herein.

63. By reason of the foregoing, the individual defendants, and each of them, intentionally confined plaintiff KOUTSOPETRAS on two different occasions without privilege or probable cause to believe a crime had been committed; denying plaintiff KOUTSOPETRAS the right to seek counsel. Plaintiff KOUTSOPETRAS was aware of and did not consent to the confinement. The individual defendants thereby falsely arrested and imprisoned the plaintiff.

64. As a consequence thereof, plaintiff has been injured.

EIGHTH CAUSE OF ACTION FOR ABUSE OF PROCESS

65. Plaintiff repeats each and every allegations of paragraphs 1-64 as though fully stated here.

66. The individual defendants, and each of them, maliciously used criminal process for a purpose other than bringing a suspected wrongdoer to justice, to wit, in order to harass and intimidate Plaintiff KOUTSOPETRAS from asserting his rights against the

individual defendants and in order to cover up their own wrongdoing and avoid civil and criminal liability for their acts.

67. As a consequence thereof, plaintiff has been injured.

**NINTH CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

68. Plaintiff repeats each and every allegations of paragraphs 1-67 as though fully stated here.

69. The individual defendants, and each of them, failed to intervene to prevent or end Plaintiff KOUTSOPETRAS unlawful arrest, the brutality inflicted on plaintiff or the malicious prosecution.

70. The individual defendants, and each of them, thereby displayed a deliberate indifference to plaintiff's rights to be free from gratuitous and excessive use of force, arrest without probable cause or malicious prosecution.

71. As a consequence thereof, plaintiff has been injured.

**TENTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF SEVERE MENTAL DISTRESS**

72. Plaintiff repeats each and every allegations of paragraphs 1-71 as though fully stated herein.

73. By reason of the foregoing, the individual defendants, and each of them, intentionally or recklessly engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby intentionally inflicting mental and emotional distress upon the Plaintiff KOUTSOPETRAS.

74. As a consequence, thereof, Plaintiff KOUTSOPETRAS has been injured.

ELEVENTH CAUSE OF ACTION FOR NEGLIGENCE

75. Plaintiff repeats each and every allegations of paragraphs 1-74 as though fully stated herein.

76. By reason of the foregoing, the individual defendants, and each of them, failed and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances.

77. As a consequence thereof, plaintiff has been injured

TWELETH CAUSE OF ACTION FOR NEGLIGENCE

78. Plaintiff repeats each and every allegations of paragraphs 1-77 as though fully stated herein.

79. By reason of the foregoing, defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, through their agents, servants and employees, breached their duty to discipline or properly train or supervise individual officers who punish summarily people allegedly accused of crimes.

80. By reason for the foregoing, defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, through their agents, servants and employees,

breached their duty to discipline or properly assign, train or supervise police officers. Defendants' agents, servants and employees failed and refused to use such care in the performance of their duties as reasonably prudent employees would have used under similar circumstances.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. A declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
2. A declaration that plaintiff's right to be free from unreasonable searches and seizures under the New York State Constitution was violated;
3. A declaration that plaintiff's right to be free from malicious prosecution under the United States Constitution was violated;
4. A declaration that plaintiff's right to be free from unlawful detainment under the United States Constitution was violated;

(B) Compensatory damages in an amount to be fixed at trial;

(C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;

(D) An award to plaintiff of the costs and disbursements herein;

(E) An award of attorney's fees under 42 U.S.C. §1988; and

(F) Such other and further relief as this Court may deem just and proper.

Dated: New York, New York
July 14 , 2020

A handwritten signature in black ink, appearing to read 'P. Hayes', is written over a horizontal line.

PATRICK HAYES, ESQ.
Attorney for Plaintiff
4616 Fifth Avenue
Brooklyn, New York 11220
718-567-8111

Index No. Year RJI No. Hon.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANASTASIOS KOUTSOPETRAS

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STACEY KISHPAUGH SHIELD NO 25405, JOHN DOE
FICTICIOUS NAME INTENDED TO BE THE POLICE
OFFICERS AND ITS TRUE NAME NOT YET KNOWN,
and NEW YORK CITY POLICE DEPARTMENT

Defendants.

SUMMONS and COMPLAINT

HAYES LAW PRACTICE PLLC
PATRICK J. HAYES, ESQ.
Attorneys for Plaintiff
4616 Fifth Avenue
Brooklyn, New York 11220
(718) 567-8111

To

Signature (Rule 130-1.1-a)

Attorney(s) for

Print name beneath

Patrick J. Hayes, Esq.

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

Please take notice

☐ NOTICE OF ENTRY

That the within is a (certified) true copy of a

Duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

That an order

of which the within is a true copy will be presented for

settlement to the HON.

one of the judges of the within named court, at

on

at

m

Dated,

Yours, etc.

HAYES LAW PRACTICE PLLC

PATRICK HAYES, ESQ.

Attorneys for Plaintiff

4616 Fifth Avenue

Brooklyn, New York 11220

To